

1.

CASE #	CASE NAME	HEARING NAME
CVRI2103146	BABBE vs MFI RECOVERY CENTER	MOTION FOR PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT

Tentative Ruling: Appearances requested to discuss:

1. Confirm no relationship between defense counsel or defendant and the proposed cy pres.
2. Add to proposed order that if hearing on motion for final approval is continued, administrator will give notice to any class member who has objected to the settlement.
3. Add to proposed order the administrator will file declaration authenticating any objection for opt out forms received.
4. No declaration from defendant concerning class members' likely age, education, experience and ability to read the notice in English. But this may not be necessary; administrator is to translate notice into Spanish.
5. Add to notice the court's street and web addresses and the full title and date of filing of the document to which the settlement agreement is attached.
6. Confirm that LWDA was served with copy of settlement agreement.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2103626	BITANGA vs NUFACTOR, INC.	MOTION FOR PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT

Tentative Ruling: Appearances requested to discuss:

1. Notice indicates attorney fees are \$117,250—not \$184,744.66 as agreed upon.
2. Zakey declaration does not indicate if he is aware of other class/representative actions.
3. No declaration from defense counsel provided. CMO ¶ G.3.b
4. No declaration from Defendant provided. CMO ¶ G.3.k.
5. The notice does not indicate that the court has only determined that there is sufficient evidence to suggest that the settlement is fair, adequate and reasonable, with any final determination decided at the final approval hearing. (CMO ¶ G.5.b.)
6. Request for Exclusion form states: "Exclusion from the Settlement will not result in exclusion from any Private Attorney General Act Settlement, if applicable." Is this necessary—there is no PAGA settlement, which makes this language confusing.